IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 206
CP-(CAA)-123/ND/2022

IN THE MATTER OF:
Magnolia Textiles Pvt. Ltd. ... Applicant/Petitioner
And Amaryllis Clothing Pvt. Ltd

Under Section: 230-232

Order delivered on 12.01.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ **SH. SUBRATA KUMAR DASH**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:
For the Applicant :
For the Respondent :

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

There is no appearance on behalf of the Respondents despite service of notice.

The present petition has been preferred for sanction of Scheme of Amalgamation of Magnolia Textiles Pvt. Ltd. (Transferor Company/Petitioner No. 1) and Manipura Commercial Pvt. Ltd. (Transferor Company/Petitioner No. 2) and Jacaranda Textiles Pvt. Ltd. (Transferor Company/Petitioner No. 3) with Amaryllis Clothing Pvt. Ltd. (Transferee Company) Under Section 230-232 of Companies Act, 2013.

The petition is second motion under Section 230-232 of the Companies Act, 2013. The Scheme of Amalgamation is espoused under Section 230 to 232 and other applicable provisions of the Companies Act, 2013 for merger/amalgamation of the aforementioned companies to achieve the objects mentioned in the scheme of amalgamation.

Heard. Issue notice to RD established under sub-section (1) of section 7 of the Competition Act, 2002 (12 of 2003) and other sectoral regulators or authorities

which are likely to be affected by the compromise or arrangement. The representations, if any, to be made by the notice shall be made within a period of thirty days from the date of receipt of the notice, failing which, it shall be presumed that they have no representations to make on the proposals.

Ld. Counsel for the Petitioner undertakes to serve notice upon the authorities/offices referred to hereinabove by all modes viz. registered post, speed post and E-mail. Affidavit of service be filed within one week. The petitioner shall also make all the documents referred to in Section 230(3) of the Companies Act, 2013 viz., a statement disclosing the details of the compromise, arrangement, a copy of the valuation report, if any, and their effect on creditors, key managerial personnel, promoters and non-promoter members, and the debenture-holders and the effect of the compromise or arrangement on any material interests of the directors of the company or the debenture trustees, if any, to the authorities referred to in Section 230(5) of the Companies Act, 2013 (ibid). The documents as also a copy of the notice to be served in terms of the present order upon the authorities referred to in Section 230(5) of the Companies Act shall also be placed on the website of the company, if any, and shall also be published in two nationalised newspapers, viz., Financial Express (English, Delhi Edition) and Jansatta (Hindi, Delhi Edition) in circulation in the locality/state where the registered offices of the petitioners are located.

List on the matter on 12.04.2024.

In the meantime, the Applicants are directed to file the evolved check list qua the facts involved in the application. A copy of the check list format may be obtained from the Court Officer during the course of the day.

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

Ashima